NOTES ON WORKING CONDITIONS FOR SPECIAL GROUPS OF EMPLOYEES
ATTY. MICHAEL VINCENT Z. CAUILAN, LLM

Special Groups of Workers:

1. Women
2. Minor
3. House helpers
4. Homeworkers
5. Night Workers (R.A. No. 10151)

Required Facilities for Women:

1. Provide seats suitable for women and permit them to use such seats when they are free from work and during working hours, provided they can perform their duties in this position without detriment to efficiency
2. To establish separate toilet rooms and lavatories for men and women and provide at least a dressing room for women
3. To establish a nursery in a workplace for the benefit of women employees therein
4. To determine appropriate minimum age and other standards for retirement or termination in special occupations such as those of flight attendants and the like

Provisions Against Discrimination

- It shall be unlawful for any employer to discriminate against any woman employee with respect to terms and conditions of employment solely on account of her sex

Acts of Discrimination:

1. Payment of lesser compensation, including wages, salary, or other form of remuneration and fringe benefits to female employees as against male employees, for work of equal value
2. Favoring a male employee over a female employee with respect to promotion, training opportunities, study and scholarship grants solely on account of their sexes

It shall be unlawful for an employer to (Stipulation Against Marriage):

1. Require as a condition of employment or continuation of employment that a woman employee shall not get married
2. Stipulate expressly or impliedly that upon getting married, a woman employee shall be deemed resigned or terminated
3. Actually dismiss, discharge, discriminate, or otherwise prejudice a woman employee merely by reason of her marriage

Relationship with Competitor

- An employer policy prohibiting an employee from having a personal or marital relationship with an employee of a competitor is valid
- The prohibition is reasonable under the circumstances because relationships of such a nature might compromise the interests of the company

Discharge on Account of Pregnancy vs. Discharge on Account of Testimony

Discharge on Account of Pregnancy	Discharge on Account of Testimony
To discharge such a woman on account of her pregnancy, while on leave or in confinement due to her pregnancy	To discharge or refuse the admission of such woman upon returning to her work for fear that she may be pregnant again

Expulsion of Women Faculty or Female Student Due to Pregnancy Outside of Wedlock

- Expulsion and non-readmission of women faculty due to pregnancy outside of marriage shall be prohibited
- No school shall refuse admission to a female student solely on account of her having contracted pregnancy outside of marriage during her term in school

Child

- Any person under eighteen (18) years of age

Child Labor

- Any work or economic activity performed by a child that subjects him to any form of exploitation or is harmful to his health and safety, or physical, mental, or psychological development

Minor Workers

- Children below fifteen (15) shall not be employed

Exceptions:

1. Child works directly under the sole responsibility of his parents or legal guardian and where only members of the employer's family are employed, provided:
    a. His employment does not endanger his life, safety, health, and morals
    b. His normal development is not impaired
    c. The parent or legal guardian shall provide said minor with the prescribed primary and secondary education
2. The child's employment or participation in public entertainment or information through cinema, theater, radio, or television is essential, provided:
    a. Employment does not involve ads or commercials promoting alcohol, tobacco, and its by-products, or violence
    b. The employment contract is concluded by the child's parents or guardian, and approved by the DOLE
    c. The employer shall ensure the protection, health, safety, and morals of the child

d. The employer shall institute measures to prevent the child's exploitation or discrimination, taking into account the system and level of remuneration, and the duration and arrangement of working time
e. The employer shall formulate and implement, subject to approval and supervision of competent authorities, a continuing program for training and skills acquisition of the child

Employment of Children from 15 to 18

- Employment is allowed but restricted to non-hazardous work
- Non-hazardous work shall mean any work or activity in which the employee is not exposed to any risk which constitutes an imminent danger to his safety and health

Hazardous Workplaces:

1. Nature of the work exposes the workers to dangerous environmental elements, contaminants, or working conditions
2. Construction work, logging, firefighting, mining, quarrying, blasting, stevedoring, dock work, deep-sea fishing, and mechanized farming
3. Manufacturing or handling of explosives and other pyrotechnic products
4. Exposure to or use of heavy power-driven machinery
5. Exposure to or use of power-driven tools

Working Hours of a Child

Age	Maximum Daily Hours	Maximum Weekly Hours
Below 15 years old	4 hours	20 hours
15 years old to under 18 years old	8 hours	40 hours

Night Work Prohibition

Age	Prohibited Hours
Below 15 years old	8 pm to 6 am (10 hours)
15 years old to under 18 years old	10 pm to 6 am (8 hours)

Domestic Work

- Work performed in or for a household or households

Kasambahay

- Any person who engages in domestic work within an employment relationship, such as but not limited to general househelp, nursemaid, cook, gardener, or laundry person
- The term excludes any person who performs domestic work only occasionally and not on an occupational basis

Rights and Privileges of Domestic Workers:

1. Minimum Wage
2. Standard of Treatment
3. Board, Lodging, and Medical Attendance
4. Privacy
5. Access to Outside Communication
6. Education and Training
7. Social and Other Benefits
8. Leave Benefits

Standard of Treatment

- The employer or any member of the household shall not subject a domestic worker or kasambahay to any kind of abuse nor inflict any form of physical violence or harassment or any act tending to degrade the dignity of a domestic worker

Board, Lodging, and Medical Attendance

- The employer shall provide for the necessities of the domestic worker, including at least three (3) adequate meals a day and humane sleeping arrangements that ensure safety, and shall provide appropriate rest and assistance to the domestic worker in case of illnesses and injuries sustained during service without loss of benefits

Privacy

- Respect for the privacy of a domestic worker shall be guaranteed at all times and shall extend to all forms of communication and personal effects

Access to Outside Communication

- The employer shall grant the domestic worker access to outside communication during free time
- In case of emergency, access to communication shall be granted even during work time

Education and Training

- The employer shall allow the domestic worker to finish basic education and may allow access to alternative learning systems and, as far as practicable, higher education or technical and vocational training

Social and Other Benefits

- A domestic worker who has rendered at least one (1) month of service shall be covered by the SSS, PhilHealth, and Pag-IBIG, and shall be entitled to all benefits in accordance with the pertinent provisions provided by law

Leave Benefits

- A domestic worker who has rendered at least one (1) year of service shall be entitled to an annual service incentive leave of five (5) days with pay

Pre-Employment Requirements:

1. Medical certificate or a health certificate issued by a local government health officer
2. Barangay and police clearance
3. NBI clearance
4. Duly authenticated birth certificate or, if not available, any other document showing the age of the domestic worker, such as a voter's identification card, baptismal record, or passport

Deposits for Loss or Damage

- It shall be unlawful for the employer or any other person to require a domestic worker to make deposits from which deductions shall be made for the reimbursement of loss or damage to tools, materials, furniture, and equipment in the household.

Prohibition on Debt Bondage

- It shall be unlawful for the employer or any person acting on behalf of the employer to place the domestic worker under debt bondage
- Debt bondage refers to the rendering of service by the domestic worker as security or payment for a debt where the length and nature of service is not clearly defined or when the value of the service is not reasonably applied in the payment of the debt

Termination of Domestic Worker Initiated by the Domestic Worker:

1. Verbal or emotional abuse of the domestic worker by the employer or any member of the household
2. Inhuman treatment, including physical abuse of the domestic worker by the employer or any member of the household
3. Commission of a crime or offense against the domestic worker by the employer or any member of the household
4. Violation by the employer of the terms and conditions of the employment contract and other standards set forth by law
5. Any disease prejudicial to the health of the domestic worker, the employer, or members of the household
6. Other analogous causes

Termination of Domestic Worker Initiated by the Employer:

1. Misconduct or willful disobedience by the domestic worker of the lawful order of the employer in connection with the former's work
2. Gross or habitual neglect or inefficiency by the domestic worker in the performance of duties
3. Fraud or willful breach of the trust reposed by the employer on the domestic worker
4. Commission of a crime or offense by the domestic worker against the person of the employer or any immediate member of the employer's family
5. Violation of the terms and conditions of the employment contract and other standards set forth by law by the domestic worker
6. Any disease prejudicial to the health of the domestic worker, the employer, or members of the household
7. Other analogous causes

Notice to End Working Relationship

- If the duration of the domestic service is not determined either in stipulation or by the nature of the service, the employer or the domestic worker may give notice to end the working relationship five (5) days before the intended termination of the service
- The domestic worker and the employer may mutually agree upon written notice to pre-terminate the employment contract to end the employment relationship

Industrial Homework

1. A system of production under which work for an employer or contractor is carried out by a homeworker at his or her home
2. Materials may or may not be furnished by the employer or contractor
3. Decentralized form of production, where there is ordinarily very little supervision or regulation of methods of work

Industrial Homeworker

- A worker who is engaged in industrial work

Rights Accorded to Homeworkers

1. Right to form, join or assist organizations
2. Right to acquire legal personality and the rights and privileges granted by law to legitimate labor organizations upon issuance of the certificate of registration
3. Immediate payment upon the employer's receipt of finished goods or articles
4. SSS, PhilHealth, and other premium contributions shall be deducted from their pay and shall be remitted by the employer or contractor

Liability of the Employer

1. The employer may require the homeworker to redo work improperly executed without additional pay
2. The employer need not pay the homeworker for any work done on goods or articles not returned due to the homeworker's fault
3. If a contractor or subcontractor fails to pay the homeworker, the employer is jointly and severally liable with the contractor or subcontractor to the homeworker for his wage
4. The employer shall assist the homeworkers in the maintenance of basic safe and healthful working conditions at the homeworker's place of work
5. The Regional Office shall provide technical assistance to registered homeworkers' organizations

Prohibited Homework:

1. Explosives, fireworks, and articles of like character
2. Drugs and poisons
3. Other articles whose processing requires exposure to toxic substances

Conditions for Deduction from Homeworker's Earnings

- General Rule: No deduction from the homeworker's earnings for the value of the materials lost, destroyed, or damaged
- Exceptions:
    1. Homeworker is clearly shown to be responsible for the loss or damage
    2. Reasonable opportunity to be heard
    3. Amount of deduction is fair and reasonable, and does not exceed the actual loss or damage
    4. Deduction does not exceed 20% of the homeworker's weekly earnings

Night Worker

- Any employed person whose work covers the period from 10 pm to 6 am the following morning, provided that the worker performs no less than seven consecutive hours of work

Health Assessment of Night Workers

- At their request, workers shall have the right to undergo a health assessment without charge and receive advice on how to reduce or avoid health problems associated with their work:
    1. Before taking up an assignment as a night worker
    2. At regular intervals during such an assignment
    3. If they experience health problems during such an assignment which are not caused by factors other than the performance of night work

Mandatory Facilities for Night Workers

- Suitable first-aid facilities shall be made available for workers performing night work, including arrangements where such workers, where necessary, can be taken immediately to a place for appropriate treatment
- The employers are also required to provide safe and healthful working conditions and adequate facilities such as sleeping quarters in the establishment and transportation from the work premises to the nearest point of their residence

Transfer of Night Workers

- Night workers who are certified as unfit for night work, due to health reasons, shall be transferred, wherever practicable, to a similar job for which they are fit to work
- If such transfer to a similar job is not practicable, these workers shall be granted the same benefits as other workers who are unable to work, or to secure employment during such period
- A night worker certified as temporarily unfit for night work shall be given the same protection against dismissal or notice of dismissal as other workers who are prevented from working for health reasons

Women Night Workers

- Measures shall be taken to ensure that an alternative to night work is available to women workers who would otherwise be called upon to perform such work:
    1. Before and after childbirth, for a period of at least sixteen (16) weeks, which shall be divided between the time before and after child birth
    2. For additional periods, in respect of which a medical certificate is produced stating that said additional periods are necessary for the health of the mother or child:
    a. During pregnancy
    b. During a specified time beyond the period, after childbirth is fixed, the length of which shall be determined by the DOLE after consulting labor organizations and employers

During these periods, a woman worker shall not:

1. Be dismissed or given notice of dismissal except for authorized causes
2. Lose benefits regarding her status, seniority, and access to promotion which may attach to her regular night work position

*Pregnant women and nursing mothers may be allowed to work at night only if a competent physician, other than the company physician, shall certify their fitness to render night work, and specify, in case of pregnant employees, the period of pregnancy that they can safely work

Night Work Schedules

- Before introducing work schedules requiring the services of night workers, the employer shall consult the workers' representatives or labor organizations concerned on the details of such schedules and the forms of organization of night work that are best adapted to the establishment and its personnel, as well as on the required occupational health measures and social services